



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 06/29/2026 - 09:00 AM

06/17/2026

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

23-PRO-00456 23 PRO-01410	IN THE MATTER OF THE PEGGY BORT JONES IRREVOCABLE LIFE INSURANCE TRUST ("ILIT")	NOTICE OF MOTION AND MOTION FOR RELIEF UNDER CCP SECTION 473 (d) and (b)
Line 1 and 2	Petitioner: Jones, James Bort (MALCOUN, STEVEN A WILKINS, PAUL A.) Decedent: JONES, PEGGY BORT Respondent: Barulich, Paul (WINTERS, AMY S. BOURNE, CHRISTEN E) Other: Jones, Cliff Ownbey	Motion hearings

Tentative Ruling:

APPEARANCE OPTIONAL

The Motion is DENIED. The request for **discretionary relief under 473(b)** is DENIED, as a reasonably prudent person under the same or similar circumstances would not have made the same error. Counsel seems to be arguing that he misread the petition, but the discretionary prong for relief is rooted in excusable neglect or error. It is difficult to accept as meritorious that counsel did not know that the petition sought payment of fees from the corpus of the trust, prior to any distributions, as that was spelled out in precise detail [and more than once]. **Mandatory relief is also DENIED under 473(b)**, as no default was entered. Further, the Order is not void, as Moving Party knew or should have known that the Petitions may be granted as a result of the hearing and the Court did not approve or rely on any settlement agreement for its ruling.

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Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

24-PRO-00046	IN THE MATTER OF THE 1981 CHIU EH FAMILY TRUST DATED FEBRUARY 4, 2003, AS AMENDED	NOTICE OF MOTION AND MOTION TO DISMISS THE PETITION OF HSIUEHYU CHIU EH TO (1) IDENTIFY THE BENEFICIARIES OF THE "A" TRUST AND "B" TRUST; (2) IDENTIFY THE TRUSTEES OF THE "A" TRUST AND "B" TRUST; (3) DIRECT DIVISION OF THE "A" TRUST AND "B" TRUST; AND
Line 3	Petitioner: CHIU EH, HSIUEHYU (Pro Se) Petitioner: CHIU EH, JACK CHIN KANG (SEARLE, LYNN S.)	Motion hearings

Tentative Ruling:

NO APPEARANCE

Motion to dismiss petition filed by Hsiuehyu Chiueh on 7/11/2022 is GRANTED for failure to prosecute, absent cogent objection. CCP 583.410, CRC 3.1342.

25-PRO-00453	Conservatorship of Joseph Ford Feehan	
Line 4	Proposed Conservatee: Feehan, Joseph Ford Petitioner: Lee, Deborah Y. (DUGONI, LAURENCE P.) Proposed Conservator: Lee, Deborah Y. (DUGONI, LAURENCE P.) Conservatee: Feehan, Joseph Ford Conservator: Lee, Deborah Y. (DUGONI, LAURENCE P.) Temporary Conservator: Lee, Deborah Y. (DUGONI, LAURENCE P.)	Petition - Exclusive Authority to Consent for Med. Treatment

Tentative Ruling:

APPEARANCE OPTIONAL

The Petition states that form GC-330 is included, but no such form is attached. As such the matter is continued to August 7, 2026 at 9:00 a.m. for filing of said form.